

**UNIVERSITY OF PORT HARCOURT
FACULTY OF LAW**

**TOPIC: NATURE AND MANAGEMENT OF FAMILY AND COMMUNAL
LAND**

The creation of communal land is not easily determined. However, most communities always traced their origins either to a particular family or individual who migrated from a particular place, travel over a long distance to settle in the present site where the community is now based. Some are acquired by conquest; this is by displacing the previous settlers on the land and taking over the land as the owners thereof. Upon settlement, the land is regarded as belonging to the community as a whole and not the property of any individual. The **Privy Council** confirmed this when the court observed in **Amodu Tijani v Secretary Southern Nigeria** thus: *“there can be no quarrel with that statement of customary tenure. As a general principle it has been applied in numerous cases and in postulating, as the learned judge did, that the land belongs to the community and then, in deciding on the evidence in this case, that it belonged to the community, he was not departing from the principles of Native Customary tenure”*.

In managing the communal land, the **Chief or Head Of The Community** is traditionally and under customary law the only legitimate person and authority having the power to manage and control the entire communal land. The legal position may be problematic especially if it is viewed from the English law perspective. This is so because; the only similar institution or devise is that of the trustee. However, the Chief is not a Trustee as known under English Law. **The most fundamental difference between the position of the Chief and a Trustee is that the Chief is the legal owner of the trust he holds, managing in trust for the beneficiaries, the Chief is not the legal owner of the land, the land belongs to the community as a whole and never that of the chief.** He may however be called Trustee of the communal land in a loose use of the word as simply the person in charge and control managing the land on behalf of the entire community with wide powers but accountable to the community. He cannot therefore treat the community land as his own personal property.

It has been suggested that the position of the chief could be likened to that of a caretaker, who takes care on behalf of the community. This may not be entirely true. The caretaker does not have such wide powers of management and control that the chief exercises. **KINGDOM C.J** observed, that, *“perhaps the term ‘caretaker’ is strictly speaking a misnomer, but it is a term which is commonly used in this country to mean the member of the family, not necessarily the head, who acts as agent of the family in conducting it’s affairs”* see: **Rutterman v Rutterman (1937).**

The Chief cannot also be regarded as agent of the community. Though, there may be a specific appointee of the Chief as agent of the community for specific purposes, but generally, he is not

an agent as in the exercise of his powers, he is not mandated or directed by the community, and the community are not regarded as his principal, and cannot restrict or abrogate his powers.

He in fact exercises ownership rights over all community lands on behalf of the entire community. The ownership of the land remains in the community, but the exercise of the rights of ownership is in the chief. Therefore in the case of **Onitola v Bello (1958)**, the court held that the head of **Onisemo** family in Lagos was the person entitled to the management of all the properties of the family, to the possession of all such properties and all the monuments of title relating thereto. It follows, that it is impossible for the community land to be alienated without his consent and participation. In **Agbloee v Sappor**, the court held that it is impossible for land to be legally transferred and legal title given without his consent. Only the Chief is the only proper authority within the community to allocate land to members of the community or outsiders. Any grant of community land to anybody by any other person is not voidable but **totally void**.

In terms of dealings with outsiders, only the Chief is entitled to collect tributes, rents, proceeds of sale and compensation for community lands on behalf of the entire community (see: **Amodu Tijani v Secretary of Southern Nigeria**).

The chief is also the only and proper party in any action for and on behalf of the community. He is regarded in law to be in possession of all the land, and no individual is allowed to maintain an action on behalf of the community. See: **Oragbaide v Oritiju (1962)**. In this case, the plaintiff brought these proceedings on his own behalf and on behalf of the **Ifetedo** community claiming an area of land as communal property. The defendant entered counter claim wherein he brought a declaration of title to the disputed land and also an injunction against the plaintiff and **Ifetedo** community. The court held that, where a member of a class claims an interest in the subject matter which is adverse or repugnant to the claim of the class as a whole, his interest in the subject matter is not common with that of other members of the class, and he can neither sue nor defend as their representative.

It is important to note that the powers of the chief though exercised on behalf of the community, is not as a result of their mandate or delegated authority. His powers are derived from customary law, and he exercises this power as an inherent and attribute of his position. It cannot be withdrawn, limited or curtailed. See **Odunsi v Ojora (1961)**. The Supreme Court held that it is the inherent prerogative of a head of family who has been appointed or capped in accordance with native law and custom to manage its property and that it is not competent for the family to divest him thereof without his consent and transfer it to somebody also, when there is no duly appointed chief or head, the community can depute one of its members to act as head and exercise the powers of management of the communal property but that is a different thing from appointing a member to act in competition against the duly capped head.

However, the chief is expected to consult his senior chiefs and elders in council before reaching any major decision, and together they constitute the chief or king in council.

In some communities, the administration of the village land is vested in all the heads of families in the village and the village head or chief occupy a position akin to that of a family head in respect of family property.

The position of the chief or head of the community is not the same as the English institution of trust as he is not strictly a Trustee though judicial authorities referred to him as such. He is not also an agent of the community, but he stands in a position, in the words of **NWABEUZE**, of a manager of the community land. Even, then the nomenclature of manager may not be entirely correct as the manager is an employee of his company, and is entitled to some form of emoluments in form of salary or fees; and is totally under the control of his employers. The chief is not so subject, he is not paid any salary or emoluments, and he is not under the control of the community or the people.

The manager may be removed from office at any time by the employers but the chief cannot. The Supreme Court in the case of **Odunsi v Ojora** held that it is not competent for the family to remove a chief properly appointed and capped in accordance with native law and custom, without his consent, **Nwabueze**, observed that “The truth is that the position of the chief in relation to communal land is a peculiarly peculiar one, a uniqueness which is borne out by the fact that without the active participation of the chief, no outright alienation of the land can be validly made, notwithstanding that all the other members desired and approved it”.

The chief is likened to the alter ego of the community. He manages, control and generally is in charge of the land for the benefit of the community. He allots land to all the members of the community in need of land, he is the authority that can sue and be sued on behalf of the community, he fights for the community in terms of ensuring that no part of the communal lands is trespassed upon, and also ensures that proper compensation is paid to the community where the communal land has been acquired by government. He ensures ultimately the equitable distribution and proper use of the communal land.

Thinking Point: Discuss the rights and duties of the village head in customary law.

FAMILY HEAD

The management of the entire family property is vested in the family head. He holds the property as ‘trustee’ on behalf of the family. The use of the word ‘trustee’ is not the same as the trust under English Law. He stands as *alter ego*, representative of the family in the administration of the family property. The position is a delicate one under customary law. This is because he is not the owner of the family property and he does not have the power to deal with the family property as his own, in fact as regards the family property he does not have a better or greater right than any other member of the family. (See **Lewis v Bankole**, Supra). He cannot alienate any part of the family property without the consent of the family members.

The family head under Native Law and custom is the eldest member of the family. Upon the death of the originator, the eldest male child called **Dawodu** in Yoruba native law and custom

becomes the family head, and upon his death the most senior member will succeed him. However, the family may decide to elect any of their members if they do not want the most senior member to become the head of family. (See **Inyang v Ita**). In Ibo communities, the eldest son becomes the head of family, and on his death his children will assume the headship. (See **Ngwo v Onyejena** (1964).

In some cases, the wish of the originator of the family will be respected if he nominates any other person apart from the eldest member of the family. See **Sogbesan v Adebisi** (Supra). There is no formal requirement for appointment of the family head. As soon as the originator of the family dies, the eldest son naturally takes control, sometimes without any formality; he calls meetings of all the children, he chairs the meetings, he represents them and gives reports etc., in other cases, there is a formal presentation of the head by elderly relations to other sons and daughters, and he is thereafter acknowledged as the head of family. Subsequent after the death of the **Dawodu**, others may be by election or popular acclamation.

STATUS AND ACCOUNTABILITY

The true position appears to be that, as the physical alter ego of his family, the head of family is the proper person to exercise the ownership rights for the family, subject to the individual rights of the members. He represents the family with respect to the exercise of these rights. Once the title of ownership is clearly separated for the exercise of the rights and powers to which it gives rise, the position of the head of family can then be perceived in its true perspective, the former is vested in the family as a quasi-corporation while the latter belongs to the head of family. Clearly, the powers of the head of family over the family property are held and exercised by him not as the individual or absolute owner, but as a representative for the family. Because he stands in a representative capacity only, he is required to exercise the powers solely for the benefit of the family only. He is not expected to make any profit or special benefit for himself without the consent of the family who he claims to represent. He must therefore be held accountable for all rents, profits and other benefits or money collected on behalf of the family in respect of family property. In the case of **Akande v Akanbi**, the court observed as follows:

“These days, it is my view that it has become an acceptable part of the duties of heads of families, especially where they hold large family properties in trust for the family, with the possibility of them having a large sums as a result of the sales of portions thereof to keep account of all the transactions in order to let the members see the true position at all times and to justify their confidence. In my view I hold as a matter of law today that it is far better to impose restrictions on the heads of family by making them liable to account, even strict account than to lay them open to temptation by unnecessary laxity in the running of family affairs which inevitably follows non-liability in that respect, to hold otherwise will be betrayal to or present

sense of justice and will open the flood gate of fraud, prodigality, indifference or negligence in all forms and will cause untold hardships on members of the family especially the younger members.”

Quite clearly, it is the duty, in fact responsibility of the family head to represent the family in all transactions on behalf of the family, however, whatever, income is received on behalf of the family, he is under a fiduciary duty to account for all moneys collected exclusively to the family, and he is under a fiduciary duty to account for all moneys collected on behalf of the family. The members can sue to ask the head of family to account for whatever he collects on behalf of the family. In the case of **Osuro v Anjorin** (1946), a member of the family successfully maintained an action against the family head to account for all rents collected for the family from family property. Similarly in the case of **Achibong v Achibong** (1947), the learned judge **Robinson J** observed as follows, on the powers of the family head and his duty to account:

“He is given considerable latitude, but his actions must be capable of reasonable explanation at any time to the reasonable satisfaction of the members of a sub branch of the House. He cannot treat House money as his own. If it is his own he can throw it away or misuse it. He cannot do that with House money, if he thinks reasonably it is a good cause and for the good of the House. He should certainly keep accounts and work on some rules, either laid down by himself or preferably after consulting with the heads of the House”.

In the case of **Odunsi v Bolaji**, the court held that a family head who received \$100,000.00 compensation money on behalf of the family must be held accountable, he observed that having failed to give the family members their fair share of the money, having not disclosed the exact amount of the money to the family, he must account for the whole money to the family.

The position in Ghana may be contrasted with the above. In Ghana, the principle is that **“neither a chief nor the head of family can be held for account either of state funds or family funds; even where he is found to have misappropriated such funds”**. The appropriate action will be to remove the family head. See: **Abude v Onome**; **Fyun v Gardiner**. The position in Ghana is however quite objectionable and contrary to natural justice, equity and good conscience.

PRINCIPAL MEMBERS

The principal members of the family are the respective eldest members of each branch of the family where the family is a polygamous family. In case of monogamous family, then all the children are principal members of the family and upon the death of any child then, his eldest

child or anyone nominated by the family succeeds as the principal member representing that branch of the family. They are important in the administration of the family property. They must consent to any decision by the family head in respect of family property. The family head accounts to them and also pass useful information through them to the entire family. In some cases, junior members of the family may be co-opted to join as a principal member, and he will be allowed to sign documents or behalf of the family. see **Esan v Faro** (1947).

The family head is a very important person in the family structure, and is the only representative and administrator of the family property. He is the voice, and *alter ego* of the family. He however, is not the absolute owner of the family property but he is a part owner, and as the manager, whatever proceeds he makes from the family property must be accounted for strictly. He holds his power over the family property for and on behalf of the family.

The family head is the eldest member of the family recognized or appointed to manage the family property. He is also accountable for any money received on behalf of the family. He carries out the administration of the family property for and on behalf of the family strictly and is not expected to make any secret profit. He does this with the consent and cooperation of principal members of the family.

Thinking Point: Discuss critically the duties of the family head.

CREATION AND DETERMINATION OF FAMILY AND COMMUNAL LAND OR PROPERTY AND MODES OF ACQUISITION OF LAND

CREATION OF FAMILY PROPERTY

Definition of Family

A family is generally regarded as the man, his wife or wives and children. **DR. ELIAS** described the family as the smallest social unit in the body polity; children are both male and female children. However, in terms of family property under native law and custom, the family property is that property belonging to the family as a unit, it is in its real form undivided interest in land; and until it is determined continue to be held jointly by the entire family as a unit. The membership of the family does not take cognizance of the extended family members. So that all members of a family that can inherit their fathers farms are the collective members of the family who can lay claim to the joint ownership of the family property. However, the ownership of family property as we will soon see may depend on the manner of creation and intention of the originator of the family or the original owner of the family property. Strictly, brothers, sisters, cousins do not form members of the family. (**Suberu v Sunmonu** (1957)). A widow cannot inherit the husband property and therefore do not form part of the members of the deceased husband family. See **Nzeiraya v Okagbue** (1963). Only the children of the founder constitute the

family. In some parts of Ibo land, only sons can inherit the land, daughters are therefore excluded. See **Lopez v Lopez** (1924), though this position has changed (**Mojekwu** and **Ukeje** cases).

In cases where the family property was created by will, the persons mentioned in the will even if they include outsiders, will constitute the family and are entitled to the family property. In **Sogbesan v Adebisi** (1941), where a testator devised his property to be held as family property and appointed his brother as the head of the family, the court held that the family included his brothers and sisters and their descendants. The judge explained that **“it would be contrary to the conception of native law and custom as well as good sense to appoint a person who himself is given no interest in the property to act as head of the family”**. In cases where specific names of children are mentioned amongst all the children, then these children mentioned will only be entitled to create the family property and their descendants.

How do you Create Family Land/Property

Family land/property can be created through several modes of acquisition of title to land in Nigeria. The several modes of creation or acquisition are discussed below.

a) By First Settlement:

This mode of acquisition of title to land is also called original settlement. This mode of acquisition of title to land was practically possible in the pre-historic and historical periods of man's developmental evolution when few people existed on the globe and the availability of abundance of unoccupied expanse of land.

Man in his wandering and gathering stages, wherever he settles and expands his gathering activities belong to him for exclusive possession and use. First settlement is one of the most reliable modes of acquisition of good and valid title to land when proven. First settlement has gained strong recognition in our legal system. This is because in the case of **Odofin vs Ayoola**, the Supreme Court of Nigeria per **Oputa, JSC.**, held thus:

“First settlement seems to be the oldest method of acquiring title to land. If the traditional evidence of such first settlement is accepted, title can be declared purely on such evidence”.

In the case of **Owoniye vs Omotosho**, it was held that:

“Ownership or title must go to the first settler in the absence of any evidence that they jointly settled on the land or that a grant of joint ownership was made to the later arrival by the first”

First settlement as a means of ownership of land was summarised by the adept Law Lord, **Karibi-Whyte, JSC**, in the case of **Odofin vs Ayoola**, where he held thus:

“This court has accepted original settlement on land as evidence of title and ownership to such land. Again where such land has been acquired it passed on death as family land to the children of the original settler”.

Furthermore, it is instructive to hold here that, incidents of first settlement is the basis of royal stools and families in most traditional and ancient societies in Africa which has lasted up to date in modern societies. Wherever the eyes and powers of the ancient man can see belongs to him for absolute possession and use thereto. The only limitation was where another stronger man had possessed, hence negotiations for boundaries delineation using natural features and marks such as rivers, lakes, streams, swamps, mountains, rocks, forbidden forests, and many more for the singular reason of peaceful and harmonious co-existence between them.

b) By Conquest:

At a point in time in man’s historical evolution and development might was wealth, when it was believed that the weak should and must be ruled and governed by the strong in order to have an absolute obedience. The property jurisprudence of Nigeria recognizes a title to land acquired where a stronger person or community overruns a weaker one in a real fierce battle with the clear intention of acquiring everything therein. This doctrine of title to land was incorporated into the corpus juris of Nigeria through the British Committee of the Privy Council in the case of **Nwuba Mora v H.E Nwalusi**, per **Lord Evershed**, where he held:

“There is in Nigeria no law corresponding to the English rule of prescription for conferring title to land. It is however not in doubt that proof of possession following conquest will suffice to establish ownership”.

The principle of law laid down above by the Privy Council was adopted by the Supreme Court of Nigeria per the Law Lord of great profundity, **Karibi-Whyte, JSC.**, in **Echi v Nnamani**, where he held as follows:

“In plain terms, proof of conquest by a community followed by effective occupation or possession of the land in dispute is sufficient to confer title to land under customary law”.

Further exposition, in the Selected Judgement of Rivers State of Nigeria, in the matter between **Chief Maya Bekebo & Ors. Vs Chief Koluamawei Edu & 5 Ors.**, where the Court held:

*“Contrary to the submission of the learned counsel for the plaintiffs, their claim could only succeed if they successfully established that their title to the land they now claim was derived from actual conquest; for the law as established in the case of **Mora v Nwalusi**, per Lord Evershed. It is however not in doubt that proof of possession following conquest will suffice to establish ownership.” This is a Privy Council decision by which I am bound, and which I find to have stated the correct position in law. This is because, the effect of conquest in law, is clearly to transfer to the conqueror, the proprietary rights of the conquered people”.*

As scrutinized above, it is firmly established that conquest is one of the modes of acquisition of good and valid title to land. Howbeit, this mode of acquisition of title to land is no more practicable in today’s contemporary society as it is highly prohibited by law, especially, **Section 42 of the Criminal Code Act, and Sections 341 & 350 of the Penal Code Law.**

c) By Customary and Traditional History:

The modern man in all communities and societies today, especially those in rural and traditional setting in Nigeria deduces their title to land through oral literature and history. The land he possesses and occupies absolutely devolves to him through customary inheritance from his forefathers and ancestors who first settled and occupied the land from time immemorial. It is significance to hold here that, first settlement and conquest have a very close nexus of connectivity with customary and traditional history as a mode of acquisition of title to land. The claimant who is relying solely on customary history, as a means of deducing and proving title to land must make sure his evidence and line of argument are straight, logical, consistence, coherence and legally convincing to reflect the current realities in order to have the preponderance of evidence and balance of probability skewed towards him.

Customary devolution of title to land is brazenly recognized in **Section 24 (a) of the Land Use Act**, which states inter-alia that:

“The devolution of the rights of an occupier upon death shall in the case of customary right of occupancy, unless non customary law or any other customary law applies be regulated by the customary law existing in the locality in which the land is situated”.

Due to the strong traditional inertia and attachment of the people of Nigeria in particular and Africa in general to customary and traditional history derived from oral literature, same is tactfully excluded in Nigeria's *corpus juris* as hearsay evidence. **Section 66 of the Evidence Act, 2011**, provides:

“Where the title to or interest in family or communal land is in issue, oral evidence of family or communal tradition concerning such title or interest is admissible”.

From the provisions of the **Evidence Act, 2011**, customary history as a means of proving title to land shall only arise whenever such title is the fact in issue before a court of law or any other legally constituted tribunal or panel, see: **Section 43 (2) of the Evidence Act, 2011**.

Besides statutory provisions, in the case of **Idundun & Ors vs Okumagba & Ors**, the apex Court per **Fatai-Williams, JSC.**, held:

*It is now settled law that there are five ways in which ownership of land may be proved, ...Firstly, ownership of land may be proved by traditional evidence as has been done in the case in hand. See also **Section 66 of the Evidence Act, 2011**.*

d) Long Possession (Prescription):

An undisturbed, quiet and peaceful possession and use of a piece of land for a very long period of time by an individual or group of individuals could smoothly transcend to a good and valid title to land, either in equity or in law. Prescription is a mode of acquisition of title to land as a result of peaceful and undisturbed possession and use of a piece of land by an individual or a group of persons for a very long period of time, it is described in some quarters as an adverse title to land.

Although some colonial legal authorities claimed there is no equivalent Nigerian traditional practice to that of English rule of prescription to confer title to land, however the court in its equitable jurisdiction shall not interfere with an undisturbed, quiet and peaceful possession and use of land by someone or a group of people for a very long period of time; **Akpan Awo v Cookey Gam**. **What's then does the court grant?** In our considered opinion prescriptive title to land is not an alien ethos to both pre and post-colonial Nigeria.

The colonial legal position in **Awo v Gam(supra)**, with all sense of humility and honesty is erroneous and misleading, and we think properly should be expunged from the legal declarations

of possessory titles and rights based on long possession by our courts even against the true owner and the *hauzi* practice of Northern Nigeria. In the case of **Kwachtaver Kaan v Kpanko Igyuse** where the Court Appeal, accordingly held:

“There is evidence that the respondent and his father have farms on the land. It would appear that the respondent and his father before him, were never disturbed on the land,.... He, the appellant added that he used to visit the land in dispute. He must have noticed the respondent farming on the land during such visits, yet he raised no objection; at least he did not say so. It must, therefore, be presumed that he acquiesced in the respondent remaining in possession of the land. It followed from these facts that the respondent’s adverse possession is for a considered period of over 40 years, ... In the light of all these facts it is my view that the appellant’s conduct not only excludes his right to possession on the principle laid down in Cookey Gam’s case, it will be inequitable to hold that he is now entitled to any right of ownership over the land, ... It is my judgement that the appellate High Court is right in granting the whole land to the respondent”.

Furthermore, in the case of **Suleiman & Anor v Johnson**, the court held:

“In the exercise of its equitable powers the court will not disturb long and undisturbed possession even in favour of the real owner by native law and custom”.

The *Hauzi* practice of Northern Nigeria is that good and valid title to land passes to a person or group of persons who has been in peaceful possession of a piece of land undisturbed for a very long period of time. The primacy of the practice is that a valid title to land passes to a family member who is in peaceful possession of a piece of land undisturbed for a period of forty (40) years and a good and valid title to land passes to a none family member who is in peaceful possession of a piece of land undisturbed for a period of ten (10) years. In the case of **Hakimi Boyi Ummaru vs Aisa Bakoshi**, where the court per **Muntaka-Coomassie, JCA** (as he then was) held:

“It Is trite in Islamic law that where a person has been in peaceful possession of land without challenge for 10 years he thereby acquires title by

Hauzi against any person who claims to be the true owner of such land during that period”.

Furthermore, the apex Court in **Idundun & Ors vs Okumagba & Ors**, per Fatai-Williams, JSC., held:

*“It is now settled law that there are five ways in which ownership of land may be proved. ...Fourthly, acts of long possession and enjoyment of the land may also be prima facie evidence of ownership of the particular piece or quantity of land with reference to which such acts are done (See **Section 35 of the Evidence Act 2011**)”.*

Based on the practical instructive illustrations expatiated above, it is prowess enough to hold that long possession (prescription) as a mode of acquisition of title to land is known to Nigerian traditional and customary land holding and usage which has been applied in our judicial system. Therefore the colonial legal qualification restricting such exercise of declaration to only the court's equitable jurisdiction is unbounded and baseless. This is against the background that, even the true owner cannot regain possession of the land due to another's long possession. Hence the legal projection that actual possession is nine-tenth (9/10) of the law, that is, to say, in an action for declaration of title to land the party in actual possession has ninety percent (90%) probability of success in the action.

Consequently, the colonial legal authority in **Awo v Gam (supra)**, in my humble view is a colonial stigmatization and scam which should be ignored with great ignominy and accordingly, we hold that such should be expunged from forming part of the corpus juris of Nigeria.

e) Statutory Enactment

A statute is a law enacted by a competent legislative body. Acts of competent legislative bodies in Nigeria are among other things include: Acts passed by the National Assembly, laws passed by the States' Houses of Assembly, bye-laws passed by the Legislative Arm of a Local Government Council, including all delegated legislations, official pronouncements, official gazettes, and standing orders. Whereas in military era were: Decrees made by the Federal Military Government, Edicts made by the Military Governor or Administrator of a state.

A statute can confer title to land on some institutions or bodies. A case at hand is the **Land Use Act, of 1978, Section 1** of that law vests all land in the territory of a State on the Governor. The section *inter-alia* provides as:

“Subject to the provisions of this Act, all land comprised in the territory of each state in the Federation are hereby vested in the Governor of that state and such land shall be held in trust and administered for the use and common benefit of all Nigerians in accordance with the provisions of this Act”.

A title to land created *ad modum* (in this manner) described above is referred to as statutory title, that is, one created by a statute. By virtue of the same enactment, the Governor can grant statutory right of occupancy to any Nigerian. The Governor is then akin to the Lord Paramount in ancient English feudal system. By the synergies of the statutory provisions of **Section 9 (1) (a) & (2)** of the Act, the Governor can issue under his own hand a Certificate of Occupancy (C of O) to any contracting party as an evidence of transaction between the parties.

f) By Transfer of Interest in Land

Valid and good title to land can be acquired by two consenting parties through a simple contract, furnished by financial consideration or not, but must be evidenced with a valid deed of transfer of interest in land executed by the contracting parties. Evidence of transfer of interest in land that constitutes good title to land include: Deed of Assignment, Deed of Mortgage, Deed of Lease, Deed of Sub-Lease, Deed of Gift, Assent, and perhaps Tenancy Agreement. All the means aforementioned transfer interest in land from one person to another by way of simple contract thereby forming good and valid title or possessory right to the holder. Such transfer of interest in land must be consented to by the Governor of the State in order to be in consonance with the provisions of **Section 21 of the Land Use Act of 1978.**

This mode of acquisition of title to land was given judicial verve, when the Supreme Court in the case of **Idundun v Okumagba**, per Fatai-Williams, JSC., held:

“Secondly, ownership of land may be proved by the production of documents of title which must, of course be duly authenticated in the sense that their due execution must be proved, unless they are produced from proper custody in circumstances giving rise to the presumption in favour of due execution in the case of documents twenty years old or more at the date of the contract (See: **Section 162 of the Evidence Act, 2011** and **Johnson vs Lawanson** (1971).

g) Intestacy (without a valid will)

Where a land owner dies intestate (i.e, without making a will), the land is naturally inherited by his children under native law and custom, and thereby becomes family property. See **Lewis v Bankole** (1908); **Ogunefun v Ogunmefun** (1931); **Miller B.O. v Ayeni** (1924). It is immaterial whether the Land owner dies leaving only one issue (one child), the land will still be constituted as family property. This was the decision in **Abeje v Ogundairo** (1967). However, **OLUWOYE** have criticized this decision on the basis that a family property connotes joint ownership, and

therefore cannot arise where there is a sole heir. **SMITH** supports the decision and even argued that the position taken by **Oluwoye** is unfounded and should be ignored. This is because, a family property is not founded on the existence of one sole heir, many or no child at all. The conditions for creation of family property by intestacy are, (1) that the land owner died intestate and (2) that his estate is governed by native law and custom. Once those conditions are met the property devolves on his children as family property. The position taken by **Smith** is to be preferred; this is because under native law and custom, land is regarded as inheritable property not only belonging for the use of the current generation, but also for generations' unborn belonging to the family. The current generation of children is therefore holding land in trust and as a sacred object for their own use and generations after them. See: **Olowosaga v Alhaji Adebajo & others** (1988).

h) Will

(Testator – means one who dies having made a legally valid will)

A testator may create family property by specifically stating in his will that he wishes to create a family property, this is by declaring in his will that his property be held, on his death, by his children jointly as family property. In the case of **Frank Coker v George Coker & ors** (1938), one Edward Foster in his will made the following bequest of his dwelling house which was situated in Lagos – **“I leave and bequeath my present dwelling house to the whole of my family or blood relation and their children’s children throughout and cannot be sold for any debt or debts that may be contracted by any of them, but at present the house should be occupied by my grandson Nath and my son Edward subject to the approval of my executors or otherwise.....”** The house was sold by order of court and the suit was to determine who is entitled to share in the proceeds of the sale. The court held that the intention of the testator was to make his dwelling house a family house, following the Yoruba custom and so that consequently those entitled to share in the proceeds of its sale were those of his descendants entitled under the custom to reside in the premises at the time of sale.

See also: **Jacobs v Oladunni Bros; George v Fajore ; Slaw v Kehinde .**

i) Conveyance

Where the land owner, confers title to his property on named members of his family by Deed with a declaration of his intention to create a family property in the named members, a family property is thereby created. In the case of **Olowosago v Alhaji Adebajo & others (1988)**, Where the family conveyed, by Deed of Grant, a parcel of land to eight people who were children and grand children of the land owner, the land was subsequently sold to the plaintiff, the respondents relied on the Deed of grant; it was held that the Deed created family property. The

court also explained that to qualify as family land, it will be necessary to identify not only the origin of the land but also its status.

j) Purchase of Land with Family Fund:

Family property may be created by conveyance **Inter vivos**. Where land is purchased with money belonging to the family, a family property is thereby created. In the case of **Nelson v Nelson**. The family decided to use money paid by government as compensation for acquisition of family property to purchase another parcel of land. The conveyance was done in favour of the family head in English form. The family head thereafter sold the land to a third party, in an action to set aside the sale, the court held that the land is a family property notwithstanding the form in which it was conveyed. See also: **Dosumu v Adodo** .

k) Declaration

Where the land owner during his lifetime decides to designate his land as family property for the benefit and enjoyment of members of his family only, a family property is thereby created. See: **Nelson v Nelson** (1951).

POSITION OF GRAND CHILDREN

As we have discussed above, **the family includes only the man, his wife or wives and children**. Family property therefore belongs only to the family or those who can inherit the property of the deceased under native law and custom, or otherwise as discussed above. Therefore the grandchildren are not entitled to any share until the death of his own parent, and then he can step into their shoes. In the case of **Lewis v Bankole**, the court held that a grandchild could not demand as of right a portion of family land for building. See also: **Balogun v Balogun**.

SLAVES AND DOMESTICS

Slaves and other domestic servants no matter how long they have stayed in the family are not part of the family. They are therefore not entitled to any portion of family property. The Supreme Court in the case of **Chairman, L.E.D.B v Fahn**, observed that slaves and domestics were their masters chattels and were themselves the object of inheritance. One may need to separate domestics from the observation of the Supreme Court. This is because the domestics are mainly working for their master for a fee or reward. While the slave is entirely the property of the owner. The slave may in fact benefit from the family property of the land owner where the owner includes the slave or domestic in his will or declaration. See: **Dabiri v Gbagjumo** (1961).

The form in which a family property is created will determine the status of the parties and the property. The family property is owned by the family as a unit and does not belong to the individual members. To prevent this, the party must be able to prove when and how the property was converted from individual ownership of the land holder to that of his family.

Thinking Point: Kene desires that all his property be converted to family property after his death so that all members of his family may have equal access and benefit to his properties. Advise him.

II. DETERMINATION OF FAMILY PROPERTY

One of the most striking changes that has taken place in the customary tenure system is the prevalence of outright sale of family land by the family. Sale or partition of the family land will no doubt bring an end to the family property and put an end to all incidents of ownership by the family. In the olden days it was impossible to do this but due to economic developments, and other factors, the family land is now sold freely depending on the agreement of the family.

Family property may be determined as follows:

a) Sale

There is no doubt that the family may make an outright sale of the family property. In effecting such sale, the family head and the principal members must agree to sell the property. They must also agree and jointly convey the property to the third party. The effect of an absolute sale or gift of family land is to transfer to the purchaser all the interest of the family in the property, and totally divests the rights of the family in the property land thereby destroying the incidents of family property previously attached to the property.

To achieve this, the family must transfer all their interest in the property, i.e. an absolute sale and not of conditional sale or gift. A conditional sale like, mortgage, lease or a pledge is not absolute, and therefore, cannot determine the rights of the family in the property. The sale must actually determine the interests of the family in the property.

The court may also order a sale of family land in appropriate cases. In **Lewis v Bankole (supra)**, the court ordered a sale of family land where it considers that such a sale would be advantageous to the family or the property is incapable of partition.

b) Partition

‘Partition’ has been described as a legal concept whereby joint possession is destroyed so that each former co-tenant becomes a separate owner of a specific portion of land, holding a share in severalty as opposed to an undivided share in the whole. See: **Abraham v Olorunfemi** (1991).

The members of the family who are entitled to a share of the family land gets a share of the land, i.e. the family land is divided into equal shares amongst all the members of the family, each member taking absolute interest free from the incidents of customary land tenure. The modalities are that the land is surveyed and shared, and each member takes his own portion. The head of family and principal members of the family must sign the Deed of Partition conveying the separate portions to the individual members of the family. See: **Balogun v Balogun** (1943); **Alhaji Olowosago v Alhaji Adebajo** (1988).

The court may also order a partition of the family property. The courts are always very reluctant to order a partition of the family property, as the court is always not willing to interfere in the management of the family property. To involve the jurisdiction of the court therefore, the applicant must satisfy the court that it has become impossible for the institution of family ownership to continue. Where the family has denied any member the right of ingress and egress to the family, or refuse to allot his portion to him, the court may order a partition of the family property. See: **Lopez v Lopez** (1924); **Thomas v Thomas** (1932); **Lengbe v Imale** (1959). The court may also order a partition for the sake of peace and justice, as was the case in **Lopez v Lopez (supra)**.

c) **Government Acquisition**

The family property may also be determined by Government acquisition of the family property. The Government will pay compensation for the acquisition, and to this effect, the interests and rights of the family is extinguished and converted into personality. The compensation may be shared or used to purchase another land. Such land so purchased will become family land. See: **Nelson v Nelson (supra)**.

Therefore, family ownership of land under customary law may therefore be determined and upon its determination the incidents of family ownership of land comes to an end and all rights and interests of the family in the property is extinguished. The effect is to bring to an end the customary land tenure of family ownership.

Thinking Point: Discuss the various means of determining of family property.

III. CREATION OF COMMUNAL LAND OR PROPERTY

(same as in Section I above) on creation of family property.

IV. DETERMINATION OF COMMUNAL LAND OR PROPERTY

Until recently, it is unthinkable to the family or communal land owner to alienate land, it was believed that land belongs to the present and future generations unborn and so it is so secured that nobody believed that it could be sold. It is usually given out temporarily, and could be recalled at any time, or even where it is understood that foreigners occupy the land as tenants, the understanding is always that the Land ultimately belongs to the family as overlords. This attitude has led many observers to opine that land cannot be alienated under customary law. **Dr. Elias** observed “*There is perhaps no other principle more fundamental to the indigenous land tenure system throughout Nigeria than the theory of inalienability of land*”. In the case of **Lewis v Bankole** (1908), **Osborne C.J.** declares, that, “the idea of alienation of land was undoubtedly foreign to native ideas in the olden days”.

However, with the advent of colonialism, and improvement in commercial activities, influx of foreigners to cities, the initial and old idea that land is inalienable began to change and also judicial attitude. In the case of **Oshodi v Balogun** (1936), the privy council observed as follows:

“In the olden days it is probable that family lands were never alienated; but since the arrival of Europeans in Lagos many years ago, a custom has grown up of permitting alienation of family land with the general consent of the family and a large number of premises on which substantial buildings have been erected for purposes of trade or permanent occupation have been so acquired.... Their lordships see no reason for doubting that the title so acquired by these purchasers was an absolute one and that no reversion in hand of the chief was retained”.

Alienation of land under customary law may take various forms. The owner may sell outrightly, or merely make a gift absolutely to a third party. There may also be conditional gift, or pledge of land or borrowing of land; this with condition that the transfer of possession is temporary and may be recalled or repossessed upon certain agreed conditions.

Sale

A sale is the permanent transfer of land for monetary consideration or money's worth. It is an act that permanently deprives the original owner from all interests' benefits and claims on the landed property, and he ceases to be recognized as the owner thereof. The mere exchange of money is

not conclusive proof of sale, there must be no doubt as to the intentions of the parties, the transaction must be conclusive, and the intentions must be genuinely for the purpose of parting with the entire interest of the owner in the property. Clearly, the person transferring the property must be a person capable of doing so and if he does not have such right, the sale cannot be valid, and the sale is void. In the case of **Folarin v Durojaiye** (1988), the court held that, (1) that there are two clear and distinct ways in which land in Nigeria can be properly and rightly sold, validly acquired, and legally transferred. They are either (i) under customary law or (ii) under the received English law. Each method of sale has its peculiar incidents and formal requirements and failure to observe these incidents of sale may invalidate the purported sale (2) it is prerequisite to a valid sale under customary law that the purchaser be let into possession. (3) in order to transfer legal title under English law by purchase there must be a valid sale, payment of money accompanied by acknowledgment of receipt and execution of deed of conveyance in favour of the purchaser, see: **Erinosh o v Owokonoran** (1965). (4) Where land is sold under English law or statute law, money is paid and receipts are issued, the purchaser can only acquire an equitable interest if he goes into possession. See: **Ogunbanbi v Abowabi** (1951).

For a valid recognized sale of land under customary law, the following conditions must be met:

- (1) The person selling must have the title under Native Law and custom, to sell and dispose of the property.
- (2) The purchase must be concluded in the presence of witnesses who also witnessed the actual handing over or symbolic delivery of the land bought by the purchaser. See: **Chief Okonkwo v Dr. Okolo** (1988).

Absolute Gift

A gift of land could either be absolute or conditional. An absolute gift is as good as sale as it totally divests the owner of all his interests in the land and not a conditional gift. See the case of **Isiba v Hanson and Anor** (1967). It was held in the case of **Jegade v Eyinogun** (1959), that a family which had made an absolute transfer of its land by way of gift could not recall the land upon misconduct.

Conditional Gift

A conditional gift only transfers occupational rights to the tenant and not ownership. He is known as customary tenant while the owner becomes his overlord. He holds the land for an indefinite period of time, unlike tenancy under English law which is for a term of years, under customary law, the customary tenant's tenure is perpetual subject only to good behavior and periodic payment of "**Ishakole**" or rent, this is nothing but an acknowledgment of his standing as

a tenant. The land is inheritable by his children, but he must not sell or part with possession of the land.

Martindale J in **Etim v Eke** (1941) explained the position thus:

“It is now settled law that once land is granted to a tenant in accordance with Native Law and custom whatever be the consideration full rights of possession are conveyed to the grantee. The only right remaining in the grantor is that of reversion should the grantee deny title or abandon or attempt to alienate. The grantor cannot convey to strangers without the grantee’s permission any rights in respect of the land”.

Borrowing of Land

Borrowing of land is a temporary grant of use of land to another person. The period is not usually specified, but is tied to the particular purpose for which the borrowing was granted. It could be for a planting season, and at the expiration of which the land reverts to the original owner. In the case of **Adeyemo v Ladipo** (1958), the court held that a temporary grant of land for building purposes was unknown to customary law.

Pledge

A pledge is created when an owner of land transfers possession of his land to his creditor as security or rather, in consideration of a loan with the object that he should exploit the land in order to obtain the maximum benefit as consideration for making the loan. The popular maxim is that **“once a pledge always a pledge”**. The pledge is always redeemable, and time does not run against redemption. The pledgee is not expected to plant economic trees or commit waste. He cannot sell or part with possession. He only takes occupational rights, the ownership’s never transferred. He is not expected to erect permanent structures, if he does, upon the payment of the debt, the pledgor takes all. However, where there are still unharvested crops on the land, the pledgee is expected to harvest it even after the debt has been paid. See **Amao v Adigun** (1957).

Clearly, under customary law, land may be put to various uses by the owner, and in the exercise of his powers as the absolute owner, may pledge, loan it out, give the land conditionally to tenant or unconditionally, and may sell outright. These are all examples of forms of alienation of land under customary law.

Sale of land is outright parting or transfer of ownership of land. It is total and absolute and irreversible. Absolute gift is also absolute like sale. Conditional gift, pledge, borrowing of land only give occupational rights only, and the ownership still resides In the owner.

Thinking Point: Discuss different forms of determination of land and their incidents under customary law.

V. ALIENATION OF FAMILY PROPERTY

It has never been the practice in the olden days to alienate land under customary law. Land is seen as inalienable, and the present owners holds it in trust for future generations. Non-members of the family are not allowed any access to family property. However, in some cases, there may be gift of family land to close relatives or allowing customary tenants where the land is so vast and the family believes such will be in the interest of the family. However as time goes on, the practice has developed that the family may alienate family land, and transfer all their interest to third parties. **Mbnaefo F.J** in the case of **Oloto v Dawodu** (1904), observed as follows:

“If the family is absolute owner of land there is nothing to stop the family if the head and all the members agree, from transferring the totality of their interest in it. It is a question of the nature of the grant as to whether they meant to transfer their entire interest in the piece of land or only a part of such interest”.

In effect, where the family has agreed and consented to the sale or alienation of their interest in family land, then nothing stops them from being able to do so and machinery for a valid title by the family of family property.

As we have discussed above, the family property is exclusively and absolutely that of the family and only the family can sell or otherwise alienate the family property to third parties. See: **Alao v Ajani** (1989). The concerns of the law is to ascertain when, how, and modalities for transfer of valid title by the family to 3rd parties, or how can the 3rd party acquire a valid title from a family, and where there are competing interests or what rules of priority will be applied to the transaction. The family being a single entity, it can only act through its accredited representatives and agents. The proper person therefore to transfer validly any interest in the family property is the head of family and the principal members of the family.

(1) The head of family must join in the conveyance with the consent of the principal members of the family. **Agbloee v Sappor (supra)** where the head of family and the principal members of the

family do not consent to a purported sale or transfer of family land, the sale is void ab initio. The position of the law has been established beyond doubt in the case of **Ekependu v Erika** (1959). See also: **Lukman v Ogunsusu** (1972); **Mogaji v Nuga** (1960).

(2) Where the principal members of the family alienates the family property without the consent of the family head, the sale is void. The principal members of the family are on their own incapable of passing any valid title in the family property without the concurrence of the family head where this is done the sale is void, and of no effect whatsoever, no title is passed and no interest is transferred. See **Ekependu v Erika (supra)**.

(3) In cases where the head of family alienates the family property without the concurrence of the principal members of the family, the sale is voidable. It is voidable at the option of any member of the family. In the case of **Essan v Faro** (1947), the court held where the principal members of the family opposed a sale by the head of family and majority of the members of the family, that the sale was invalid. The court observed, nowhere can we find a ruling to the effect that the acquiescence of the majority of the family renders a sale valid.

The rule that sale by the head of family without the concurrence of the principal members of the family is voidable is subject to three important qualifications:

(1) The rule will not apply where the head of family had sold the family land as his own personal property, the sale is void and not voidable. See: **Solomon v Mogaji** (1982); **Adejumo v Ayantegbe** (1989). The Intention of the head of family is important. He may actually be conveying as the representative of the family, while the conveyance is expressed as if he is selling as the beneficial owner thereof. In which case, the transaction will be voidable and not void. See: **Akana v Anjuwon** (1967).

(2) The family head cannot make a gift of family property without the consent of the members of the family, where this is done the gift is void ab initio. See: **Oshodi v Aremu** (1952), where the family made a gift of the family land to a member of the family without the consent of the members of the family. The member later sold the land to a purchaser who sold of to the defendant, the court held the gift to be null and void.

(3) The family head cannot unilaterally order the partition of family property. The rationale for this rule is that partition has the effect of alienating the family property, even if it is to members of the family, the partition will be held to be void and of no effect. **Onasanya v Siwoniliu** (1960).

Distinction Between Void and Voidable Transaction

The distinction between void and voidable transaction is very important. The success of an action to invalidate an unlawful disposition will depend on the relief claimed in the court.

A void transaction is one that is simply treated as if it was never made. A transaction that has no legal effect whatsoever, that has not transferred any right or interest to anybody, it is actually not necessary to ask for declaration to void it, because it is void ab initio, so that all the transactions or dealings based on it cannot stand, as you cannot place something on nothing. See: **Thomas v Nabham** (1947).

A voidable transaction is one that is considered valid when made but is tainted with irregularity which may, make it liable to be voided by those having power to do so. It can only be avoided by action in court at the instance of the person aggrieved or entitled to do so. The court can set aside a transaction that is voidable, while the court needs only to declare a transaction void and there is nothing to be done to it further. The effect of setting aside a voidable transaction is that it relates to the inception of the transaction, and just like a void transaction it is rendered void ab initio.

Effect of Voidable Transaction

The court will set aside a voidable transaction at the instance of the aggrieved member of the family. What the member needs to show is that he is a principal member of the family and his consent was not obtained. However, in order to set aside the voidable transaction the member must act timeously and must not be guilty of delay. In the case of **Mogaji v Nuga (supra)** the plaintiff purchased family land from the head of family with consent of only two branches of the family. Ten years after the sale the principal members who oppose the sale went to court to challenge the sale, the court held that though the sale was voidable, they know about the sale and did not take any action for ten years, it was too late to have the sale set aside.

Time does not begin to run until the aggrieved member has actual knowledge of the voidable transaction. Knowledge of the transaction can be imputed to the member if the member ought to have known, e.g. where the purchaser had taken over the land and has started building on the land, there is a presumption that the member knew or ought to have known about the transaction. Unwarranted delay will therefore block any action to set aside the sale.

Where the transaction is voidable, the purchaser gets a voidable title, but if he goes ahead to build or erect a structure on the land, and the aggrieved members did not take action to set it aside, the law is that they are estopped from setting it aside later; because *restitutio in integrum* is no longer possible. In other words, what the purchaser should do is to take steps to ensure that he erects a structure on the land or sell to a third party and claim that restitution in integrum is no longer possible.

We must understand that the rule was made to protect the family property and not third parties. Third parties are therefore expected to make diligent search to ensure that they are not entering into a voidable or void transaction. The rule therefore ought to allow these who after due diligence still went ahead to enter into a voidable title, and have also taken steps to build their property on the land, to the knowledge of the members of the family then such sale can no longer be set aside. Another issue that needs to be examined, is the fact that if the aggrieved member

can no longer set aside the sale, and he was not given his legitimate share of the proceeds of sale, what should be the appropriate course of action?

See: **Mogaji v Nuga (supra)**. Since time has operated against his relief, I submit that his proper course of action should be to ask for account, and claim his right as a member of the family.

Effect of Void Transaction

A void transaction is void *ab initio*, in effect, no matter the length of the time, the transaction remains void and ineffectual. Where the person who acquires a void title transfers same to a third party, he also takes a void title and may be guilty of trespass if he takes possession. See: **Ekependu v Erika (supra)**.

The alienation of family property is a very important aspect of management role of the head of family. He must ensure that he sell family property as family property and not his own property, if he does, he transfers only voidable title. For a proper and valid title, the family head must sell with the concurrence of the principal members of the family. Where the principal members or members sell without the consent of the family head, the sale is void *ab initio*.

The family head must concur in all transactions involving the family property, if his concurrence is not obtained, the transaction is void. If however, he disposes the family property without the consent of all members of the family, the sale is voidable; the aggrieved member who wants to set aside the sale must act timeously and not delay in which case the sale will not be set aside.

Thinking Point: Distinguish between void and voidable disposition of family property.

ALLOCATION AND ALLOTMENT: Terminology

The terms “allocation” and “allotment” have often been used interchangeably by judges and writers.

To allocate land means to grant a portion of the family’s land to a member of the family for a determinable interest. The grantee therefore has rights of user and enjoyment but not maximum rights in the land. It is quite possible family will benefit from such allocation. In an allotment of land, however, title passes; the allottee has not only the rights of user and enjoyment of the land but also the power of disposition. Instances of the latter are: (i) when the chief acting in his administrative capacity apportions to members of the community parcels of communal land; and (ii) when the family has partitioned its land, aliquot portions are allotted to the members entitled.

The following additional differences between allocation and allotment become apparent:

- (i) the former is carried out by the head of the family or the chief as head of his family, the latter is performed by the chief in an administrative capacity;
- (ii) allotment is usually made from unallotted or communal land, allocation, from family land;

(iii) when there is an allotment to a man for himself and family, the power of alienating the land is vested in the family, with the grantee gaining no such power;

(iv) in the face of conflicting allegations of allotment and allocation, there is a strong presumption in favour of family (or communal) property retaining its character, therefore in favour of allocation. The question whether a disposition is an allotment (including allotment on partition) or allocation is always one of fact to be decided on the evidence, bearing in mind the presumption, and

(v) on allocation the overlord retains a reversion, but on allotment, the allotting authority acquires an Interest in that portion of land only on failure of the family of the allottee, or, on abandonment of the land. This right has been loosely termed as reversionary right, which operates only in the event of the family of the person to whom the land was granted, or the family of his successor in title, failing and becoming extinct. The so-called reversion in the nature of escheat which is clearly not an interest in land and cannot be disposed of.

The Basis and analysis of allocation

- **Basis of allocation**

The right of a member to reside in the family property is one of the most fundamental incidents of family landholding and if physical residence were impossible that right would be satisfied by a share in the rents and profits derived from the property. However, it is of the nature of joint family property that the members should occupy the land with their children and their wives, though with changing economic and social conditions, instances will arise where the family's land will be rented out and the proceeds distributed among the members. The incident of residence is therefore becoming more and more a juristic conception matter which has given rise to difficulty is whether a female member of the family is allowed to bring her husband on the family land. Male members are allowed to live with their wives and children on a portion of the family property but it would seem that a female member is in a disadvantageous position for the authorities suggest that a female has no right to insist on her husband occupying the family's land, or a portion thereof, with her. If she leaves the family house to go and live with her husband, she does not lose her right to return and her children, in their own right, have claims in the family property.

In 1938, **Carey J.** deciding the issue as to which persons are entitled to reside in the founder's family house, said that:

“All his children are entitled to reside there with their mothers and his married sons with their wives and children. Also a daughter who has left the house on marriage has a right to return to it on deserting or being deserted by her husband”.

Nothing is said about a daughter being able to bring her husband to reside in the house.

It is quite within the power of the head to allocate a portion of the family's land to a member to satisfy this right of residence, when he considers it to be in the interest of the family. But does allocation to a female member give her the right to have her husband on the portion granted to her against the wishes of the family? Here again there is a paucity of authority, but in **Akinboyewa v. Ikujore**, the president, after accepting the view of Coker (that a female member is not allowed to bring her husband to live on family property) as a correct statement of the law, went on to state that an exception to this rule arises "where the family property has been 'shared out' and given to the female members". In such a case, he held, "she can use it in any way she likes. In other words she can bring her husband on the farmland".

What is meant by "shared out"? It is difficult to gather from the judgment whether his honour is speaking of the apportionment of the property on partition, or of a grant on allocation. It is submitted that both acts should have this effect for to-day there is no justifiable reason for any discrimination against a female member.

THE NATURE AND EXTENT OF AN INDIVIDUAL MEMBERS RIGHTS IN COMMUNAL/COMMUNITY LAND/FAMILY LAND

Every member of community in Africa and under customary law has certain important rights in the community which must be respected by the chief and enforceable by the individual members of the community. All the powers of the chief are expected to be exercised for the benefit of the entire community. While strangers may not be able to enforce any specific rights in the community, the individual can enforce his rights within the framework of the customary law.

A) Right of Allotment

Every member of the community is entitled to use the communal land, the chief must ensure that every deserving member of the community is allotted a parcel of land for farming and to build his house thereon. The right does not depend on the pleasure of the chief or discretion. He is under a duty to allot land to every member from the communal land. The member is entitled to enforce this right in court. (See: **Lewis v Bankole**). The court's jurisdiction extends to protection of individual rights of members of the community. If the court discovers that any land (**Ajoke v Oloko** (1959). Once a communal land has been allotted to a member or partition of the community, then he exercises all occupational rights thereon, to the exclusion of any other member of the community, in effect; the individual member acquires permanent rights in the land. The rights being permanent are actually ownership rights and are inheritable by his heirs. In the case of **Oragbade v Onitiju** (1962), It was held where land has been allocated to some individuals within the community land, that such land are no longer the property of the community. In such areas the allocation of community land to a member confers ownership on the member.

The effect of this is that the chief cannot make inconsistent grant of the communal land to members of the community, where this is done the latter allotment is void. The chief cannot revoke the grant already made to a member of the community and re-allocate to another member or strangers in the case of **Adewoyin v Adeyeye** and also **Asiyanbi v Adeniji** (1966), the Supreme Court held that the Oni of Ife could not grant land already enjoyed by a family to another person, whether a member of the family or not, without consulting the family, and that any rule of customary law will be rejected as being contrary to natural justice, equity and good conscience. In the case of **Agbloee v Sappor**, the chief and principal members of the family were ordered to pay damages for trespass committed through unlawful entry into land lawfully occupied by a member; he is also entitled to injunction to restrain any threatened interference, and to a declaration of his possessory title.

The member of the community's interest is akin to that of a tenant; except that he does not pay any rent and cannot be evicted for any reason except for acts that are totally criminal to the community such as armed robbery, and other serious misconduct that threaten the existence of the community. Forfeiture is possible under customary law but is rarely resorted to.

B) Right to Share in Communal Income

Apart from actual user, whatever income or profit is derived from communal land is the property of the entire community. Income or profit is derived from communal land in form of rents from customary tenants, sale of communal lands; compensation from government paid for acquisition of community lands, etc. In effect the income is paid to the chief, who must give account of the moneys to the community. The chief is entitled to deduct all charges and outgoings, after which the money is paid to the community. Every member of the community must be shared amongst all members of the community from proceeds from the community land. If the chief appropriates the money for his own personal use, the members are entitled to ask for account of the entire income. In the case of **Osuro v Anjorin** (1946), the court entered judgment in favour of a member of a family for account and payment of whatever is due to the member of the family. See also: **Achibong v Achibong** (1947).

C) A Voice in the Management of the Property

The chief is obliged to inform and consult the individual family heads and important elders of the community before taking any independent step affecting the community property. The family heads must also inform members of his family who participate in decision making in the community. The consent of the entire principal members of the community is required before the chief may take important decisions affecting the community land. It is also important that all principal members must agree to a sale or disposition of community land, where this is not done, the sale is not void, but the members may challenge the sale, and ask for account, but cannot nullify the sale.

D) Position of Strangers

The communal land is exclusively for the benefit of the members of the community and not strangers. A stranger interested in community land may apply for a grant of the land from the chief or traditional authorities. The stranger cannot acquire ownership of communal land, when granted, he will remain a tenant of the community and the stranger may only use the land for the purpose for which the land was granted to him, which may only be for farming purposes; and where the stranger builds houses on the land, he remains customary tenant of the community.

E) Residence

The right of residence, which includes user and enjoyment of the family property, springs from the unity of possession which exists from the nature of the title held by the family. Today residence does not necessarily mean physical residence. In such cases the right of possession will be represented by the right to share in the rents and profits derived therefrom. So much importance is attached to this right that as long as it is still possible for the members to reside in the house amicably, a sale or partition would hardly be ordered.

Female member's right of residence. Female members of the family have the same rights as male members to reside in the family house, but though the male members are entitled to reside with their wives and children, on the marriage of the female member, she has no right to bring her husband on the premises to reside with her and her husband has no interest in the property. In **Akinboyewa v. Ikujore**, it was stated obiter that an exception to the rule exists when the property has been 'shared out', thus:

"While I support the view expressed by the Counsel for the respondent that a female member of a family is not allowed to bring her husband on the land, an exception is where the family property has been shared out and given to the female members. She can use it in any way she likes, in other words she can bring her husband on the land".

F) Ingress and egress

This right was examined in **Lewis v. Bankole**. From the various pronouncements in that case it appears that the members must be considered in two different categories, i.e. those residing in the family house and those not so residing. **Osborne C.J.** held that as regards the latter no such right exists but they have a privilege to go in and out of the premises on those occasions when members of the family assemble for family purposes in the house. If the members of the family entitled to attend from outside would have a right of ingress and egress to allow their attendance, a fortiori those who reside on the premises.

In **Thomas v. Thomas**, the members were declared to have reasonable ingress and egress on the family land, a voice in the management of the property, a share in the surplus income derived from it after necessary outgoings have been met.

G) Right to Act Where the Family Head Refuse to Act

The court has held in series of cases that where the family head refuse or neglect to act especially in cases where he ought to file action in court to defend family property, the member of the family may act on its behalf. See: **Bassey v Cobham** (1924).

Improvement on Family Land

A family property will not cease to be so merely because the member has caused improvements to be made thereon with his own resources. The family property is allotted to individual members of the family for the purpose of building and farming and the title to the land does not thereby pass to the member. He owns all the improvements made with his resources but the title remains that of the family. He may in fact alienate the improvement and the buyer will be expected to remove the improvement from the family land. In the case of **Bassey v Cobham (supra)** the court held where a member of the family had used his own money to reclaim marshy family land, that the land still remains that of the family. Similarly in the case of **Shelle v Asajon** (1957), the member of the family replaced the old thatch roof of the family house which she occupied with corrugated iron sheeting, it was held that she did not thereby become owner of the house. **Jibowu Ag. C.F.** explained that the person who lives in a family house is expected to keep the place in good state of repair in order to make the house habitable or more comfortable for him, the occupier". It is clear therefore that spending extra resources on family property does not confer special privilege or right on the member beyond the right of the family, as the family remains the allodial owner thereof.

Consequently, the family is entitled to recover possession of the family land allocated to a member who mortgaged same and is to be sold by court order in execution of a judgment debt. See: **Omolodun & other v Olokude** (1958), See also: **Salako v Oshunlami** (1961), **Santeng v Derlewa** (1940). This was a decision on customary law of Ghana where the court held based strictly on justice of the case that any member who built on family land becomes the owner of the land and can pass the title in his will. In summary; the ownership of family land will remain that of the family in spite of improvements made thereon by the allottee.

The rights of members of the family in respect of family property is safeguarded and perfected under customary law. They have the right to be allocated family land, share in the Income from family property, be part of the management of the family property and also intervene in the management in cases where the family property is at risk and the family head has refused to take action. The member may improve the family property allocated to him but that does not translate to ownership if he continues to reside in the family property.

The family is the absolute owner of the family property allotted to the members though, represented by the head of family has legally protected rights in the family property.

Thinking Point: Discuss with the aid of relevant authorities the rights of members of family in family property.

P.S.: This lecture note was NOT prepared by **Adv. Chimdike** and **Faithful**, they only highlighted certain parts to enhance clarity and ease of understanding.